



In the Family Court

No: BV20D08761

sitting at The Royal Courts of Justice

The Matrimonial Causes Act 1973

The Marriage of Nadia Zahmoul and Karim Nouredine Zahmoul

After hearing James Ewins KC for the applicant and the respondent in person, and after consideration of the documents lodged by the parties at a hearing on 9 June 2023.

ORDER MADE BY MR JUSTICE MACDONALD ON 30 JUNE 2023 SITTING IN PRIVATE

TO KARIM ZAHMOUL

WARNING: IF YOU DO NOT COMPLY WITH THIS ORDER, YOU MAY BE HELD TO BE IN CONTEMPT OF COURT AND YOU MAY BE SENT TO PRISON, BE FINED, OR HAVE YOUR ASSETS SEIZED.

ANY OTHER PERSON WHO KNOWS OF THIS ORDER AND DOES ANYTHING WHICH HELPS OR PERMITS KARIM ZAHMOUL TO BREACH THE TERMS OF THIS ORDER MAY BE HELD IN CONTEMPT OF COURT AND MAY BE IMPRISONED, FINED OR HAVE THEIR ASSETS SEIZED.

The parties

1. The applicant is NADIA ZAHMOUL

The respondent is KARIM NOUREDDINE ZAHMOUL

Definitions and interpretation

2. The “children of the family” are:
 - (a) Jade Mia Zahmoul, born on 14 May 2005; and
 - (b) Lila Mae Zahmoul, born on 31 May 2007
3. The applicant filed this application on 18 April 2023.

Recitals

4. Paragraph 0 below is a legal services order for an amount of money (‘the amount’) made pursuant to s.22ZA of the Matrimonial Causes Act 1973. The order was made to enable the applicant to obtain legal services for the purposes of these English proceedings. The court was satisfied that without the amount, the applicant would not reasonably be able to obtain appropriate legal services for the purposes of the proceedings.

5. The applicant undertakes to repay to the respondent such part of the amount if, and to the extent that, the court is of the opinion, when considering costs at the conclusion of the proceedings, that she ought to do so.
6. It is recorded that the applicant sought within her application the historic costs owed to her current solicitors Burgess Mee and her previous solicitors Withers pursuant to an undertaking from the former to the latter dated 2 November 2022. The court was not satisfied that these payments were required to enable the applicant to obtain appropriate legal services.

You may be held to be in contempt of court and imprisoned or fined, or your assets may be seized, if you break the promises that you have given to the court.

If you fail to pay any sum of money which you have promised the court that you will pay, a person entitled to enforce the undertaking may apply to the court for an order. You may be sent to prison if it is proved that you —

- a. **have, or have had since the date of your undertaking, the means to pay the sum; and**
- b. **have refused or neglected, or are refusing or neglecting, to pay that sum.**

I understand the undertakings that I have given, and that if I break any of my promises to the court I may be sent to prison for contempt of court.

Nadia Zahmoul

IT IS ORDERED THAT:

7. Maintenance pending suit

- 7.1** The Respondent shall pay to the Applicant maintenance pending suit (to the date of decree absolute, interim periodical payments thereafter) from 1 July 2023 until further order at the following rates:

- (a) £18,762 per month, payable monthly in advance by standing order to the Applicant's Barclays account 50021432 (or such other account as the Applicant may notify the Respondent of in writing), the first payment to be made on or before 3 July 2023 and on the 1st of each month thereafter (or the nearest preceding working day);

- (b) Such sum as shall be equivalent to the children's school fees and all reasonable extras, summer tuition and university expenses (including tuition, board, and living expenses); such sums to be paid to the Applicant no less than 14 days before they shall fall due upon production of the relevant invoice so that she may pay the bursar of the relevant institution on behalf of the children;
- (c) Payment by 3 July 2023 to the Applicant of the children's Easter holidays educational support and revisions for A levels and GCSEs for a total of £10,725.
- (d) Payment to the Applicant for the applicant's move to London, including her rental deposit, storage and all reasonable expenses associated with the Applicant and the children's move to London, payable upon production of the relevant invoice(s) and paid no less than 7 days before payment shall fall due.

Legal Services Provision Order

- 8. The respondent shall pay as a legal services order to Burgess Mee, the legal representatives of the applicant, by transfer to their bank at Lloyds Bank, Sort Code 30-94-77 and Account Number 57657860 the following payments:
 - (a) £221,654 payable as to:
 - (i) £110,827 by 16:00 on 7 July 2023; and
 - (ii) £110.827 by 16:00 on 1 August 2023

in order to meet the applicant's anticipated costs up to and including the directions hearing (to be listed pursuant to paragraph 12 below);
 - (b) £151,000 in order to meet the applicant's anticipated further costs from the directions hearing (to be listed pursuant to paragraph 12 below) up to and including the final hearing, payable on such terms as may be agreed or determined by the court at the directions hearing.

Directions

- 9. By 4pm on 26 July 2023 the parties shall agree a revised timetable to final hearing listed as commencing on 30 October 2023 with a time estimate of 10 days and shall lodge with the court an agreed draft order incorporating that agreed timetable.
- 10. Absent any application to vacate or vary the directions made by the court on 17 November 2022, the agreed draft order provided for in paragraph 9 shall include

the re-timetabling of the directions in the order of 17 November 2022 that remain to be complied with.

11. In default of an agreed draft order being lodged with the court by 4pm on 26 July 2023 in accordance with the terms of paragraph 9 above, the parties must apply to the court for directions.

Further hearings

12. There shall be a pre-trial review before MacDonald J on a date (c.4 weeks before the final hearing) to be listed by 16:00 on 10 July 2023 by counsel's clerks.
13. In advance of the directions hearing the parties shall attempt to agree a timetable to the final hearing listed on 30 October 2023 with a time estimate of 10 days.

Service

14. The applicant has permission to serve this Order upon the respondent.
15. Service of this Order may be made by email to karim@zahmoul.net

Costs

16. Costs reserved.

Dated 5 July 2023

Communications with the court

All communications to the court about this order should be sent to –

The Clerk of the Rules, Queen's Building, Royal Courts of Justice, Strand, London WC2A 2LL quoting the case number. The telephone number is 020 7947 6543. The offices are open between 10 a.m. and 4.30 p.m. Monday to Friday.

Name and address of applicant's legal representatives

The applicant's legal representatives are –

Burgess Mee